



Let Only Assured Periodic Tenancy Agreement

19 Westgate Street, Long Melford, Sudbury, Suffolk, CO109DS

Number of Tenants: 2

Start Date: 22nd of August 2026

Rent: £1,000.00 per month

Deposit: £1,153.00

**Tenant Utilities: Broadband, Council Tax, Cable Television, Electricity, Gas, Satellite Television, The Line
Rental Of The Telephone, TV Licence and Water**

Landlord Utilities: Not Applicable

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TENANCY AGREEMENT

This Agreement contains the terms, conditions and obligations of the Tenancy and the things which the Landlord and the Tenant agree to do or not to do during the Tenancy.

Once signed and dated, this Agreement will be legally binding and may be enforced by a Court. You should read it carefully. If either party is in any doubt as to the content or effect of this Agreement, we recommend that you seek independent legal advice before signing.

Date: The date of execution set out in the audit trail to this document.

The Landlord(s): Julian and Susan Glasgow of <address withheld>

The Tenant(s): Rupert Thomas of <address withheld>

Mandy Zimmer of <address withheld>

The Landlord and the Tenant agree to the letting of the Property for the Tenancy at the Rent and under the conditions outlined in this Agreement.

The Tenant should note that the Section 47 address is only valid during the Tenancy. Once the Tenancy is over the Tenant should make their own enquiries as to the proper address to serve notices and court documents.

The Permitted Occupier(s): Not applicable for this Tenancy

The Guarantor(s): Not applicable for this Tenancy

The Relevant Person(s): Not applicable for this Tenancy

The Property: 19 Westgate Street, Long Melford, Sudbury, Suffolk, CO109DS

Excluding/Including: *If applicable please see additional clause(s) for more details*

The Term: The Tenancy shall be a periodic tenancy to start on and include the 22nd of August 2026 (*which is the date that the Tenant can first occupy the Property*) until lawfully terminated by the Landlord or Tenant or by mutual agreement between them.

The Rent: £1,000.00 per month.

The first month's rent in the sum of £1,000.00 shall be payable in cleared funds immediately after the execution of this agreement, but before the 21st of August 2026. Thereafter rent will be payable in advance in cleared funds at a rate of £1,000.00 per month due on the 22nd.

Unless otherwise stated all rental payments should be made by Standing Order to the Landlord's bank as follows

Name: <bank details withheld>
Sort Code: <bank details withheld>
Account Number: <bank details withheld>
Payment Reference: 19 Westgate Street,

The Rental Period: Every period on which the Rent is due, commencing on the first day of the Tenancy stated above.

The Deposit: £1,153.00 to be held by the Tenancy Deposit Scheme ("TDS") and placed within the nominated Deposit Protection Scheme. At the end of the Tenancy, the Tenancy Deposit Scheme ("TDS") shall return the Deposit to the Tenant subject to the possible deductions set out in this Agreement.

UTILITY TABLE

Utility	Payment Requirement	Amount	Due Date & Notification
Broadband	Tenant's Responsibility	Exclusive	N/A
Council Tax	Tenant's Responsibility	Exclusive	N/A
Cable Television	Tenant's Responsibility	Exclusive	N/A
Electricity	Tenant's Responsibility	Exclusive	N/A
Gas	Tenant's Responsibility	Exclusive	N/A
Satellite Television	Tenant's Responsibility	Exclusive	N/A
The Line Rental Of The Telephone	Tenant's Responsibility	Exclusive	N/A
TV Licence	Tenant's Responsibility	Exclusive	N/A
Water	Tenant's Responsibility	Exclusive	N/A

DEFINITIONS AND INTERPRETATION

The Landlord: The person or persons owning an interest in the Property which gives the right to possession of it when this Tenancy ends, and anyone who later owns the Property. Where this contract provides that the Landlord may or may not do something, it is inferred that someone acting on behalf of the Landlord may or may not also do that thing.

The Tenant: The person or persons entitled to possession of the Property under this Agreement. Where this contract provides that the Tenant may or may not do something, it is inferred that the Tenant will use reasonable endeavours to ensure that no other person, especially any guest or visitor invited onto the Property by the Tenant, does or does not do that same thing.

The Guarantor: The person or entity who undertakes to be jointly and severally liable with the Tenant to pay all rent and any debt arising from any breach or default of the Tenant's obligations contained in this Agreement until all debt is paid in full whether or not the Landlord elects to pursue the Tenant.

Permitted Occupier: Any person, that is not named as Tenant, but has the permission of the Landlord to reside at the Property. They have no legal rights to the Property and have no responsibility for the payment of rent.

The Landlord's Agent: David Burr Lettings Partnership of David Burr, Walnut Tree House, Hall Street, Long Melford, Sudbury, Suffolk, CO10 9JG, or any person or company who later takes over the rights and obligations of the Landlord's Agent.

The Property: The Property which has been agreed to be let including any parts of the exterior forming part of the let (e.g. gardens, paths, fences, boundaries or outbuildings). Where the Property is a flat or forms only part of a building, the letting includes a licence for the use, with others, of communal access ways, gardens and other similar facilities to which the Landlord is entitled under the terms of their Lease.

The Lease (if applicable): Any superior tenancy or lease under which the Landlord holds the Property. The obligations set out in that superior lease will bind the Tenant provided the Tenant has been given notice of them.

The Contents: The Landlord's furniture, furnishings, fixtures, fittings and effects including sanitary ware, floor ceiling and wall coverings, decorative features, white goods and other equipment specified in the Inventory.

The Inventory of Contents and Schedule of Condition ("the Inventory"): The Inventory means the document prepared by the Landlord, the Landlord's Agent or an inventory clerk detailing the Contents, the decor and condition of the Property generally. The Inventory may be relied upon at the end of the Tenancy in assessing damage or compensation for damage (over and above fair wear and tear) and so should be checked carefully at the start of the Tenancy. "The Inventory" may refer to either the check-in or check-out of the Property, as context suggests.

Fair wear and tear: Loss, damage or depreciation that naturally and inevitably occurs from reasonable and ordinary use or exposure, or ageing.

Emergency: Where there is a serious risk of damage to the fabric of the Property, neighbouring properties, or to life.

The Tenancy: The Term until lawful termination.

Joint & Several Liability: If the Tenant consists of more than one person, their actions and obligations under this Agreement shall be joint and several in all respects which means that each Tenant is wholly responsible for all Tenant obligations and sums due under this Agreement, not just a proportionate part. It also means that the Guarantor (if applicable) will be liable with the Tenant to pay all rent and any debt arising from any breach of this Agreement until all debt is paid in full.

Interpretation: Words importing the singular include the plural number and vice versa. Any reference to legislation will be read as though the words 'as amended' were written after it so as to incorporate changes that may be made in legislation from time to time.

Any covenant in the agreement that imposes an obligation or restriction on the Tenant is to be read as imposing an obligation on the Tenant to ensure that any Permitted Occupier or other visitor that the Tenant allows into the Property does not breach that same obligation or restriction.

Working day means any day excluding a Saturday, Sunday or a Bank Holiday.

The Tenant and the Landlord agree that the laws of England and Wales shall apply to this Agreement.

1. TENANT OBLIGATIONS

The Tenant agrees with the Landlord that throughout the Tenancy the Tenant will:

1.1. General

1.1.1. Any obligation upon the Tenant under this Agreement to do or not to do anything shall also require the Tenant not to permit or allow any licensee or visitor to do or not to do that thing.

1.1.2. To be responsible and liable for all the obligations under this Agreement as joint and several Tenant if the Tenant forms more than one person, as explained in the Definitions.

1.2. Pay Rent

1.2.1. Pay the Rent and any other sums due to the Landlord in the manner set out in this Agreement, whether formally demanded or not.

1.3. Pay Interest

1.3.1. Should any Rent remain unpaid for more than 14 days beyond its due date, interest will accrue on such overdue amounts at a rate of 3% per annum above the Bank of England base rate. This interest will be calculated daily from the original due date until full payment is received.

1.4. Pay for Council Tax

1.4.1. Unless the Rent is expressed as being inclusive of council tax, to pay the council tax (or any similar charge which replaces it) in respect of the Property either directly to the local authority, or by paying that sum to the Landlord where the Landlord has paid that sum to the local authority (whether legally required to do so or not) within 14 days of receiving a written request for such monies.

1.5. Pay for Utilities

1.5.1. To pay all charges falling due for the services used during the Tenancy which are described in the Utility Table above as being the responsibility of the Tenant.

1.6. Care for Property

1.6.1. Not cause or allow any damage or loss to the Property or Contents, fair wear and tear excepted, and use the Property and Contents in a proper and tenant-like manner.

1.6.2. The Tenant is liable to change, replace or renew at their own cost all light bulbs, batteries, and extractor fan filters, and dishwasher and water softener salt.

1.6.3. To inform the Landlord immediately in writing when it comes to the notice of the Tenant of any repairs or other matters falling within the Landlord's obligations to repair the Property.

1.7. Replace Broken Glass

1.7.1. Promptly replace all cracked or broken glass with the same quality glass, where the crack or breakage is caused as a result of any action or misuse or negligence of the Tenant, a third party, any family or visitors, whether invited or not.

1.8. Smoke Detectors and Carbon Monoxide Detector

1.8.1. Ensure that all smoke and carbon monoxide detectors are kept in good working order by ensuring that they are kept free from obstruction, tested regularly and replacing batteries when necessary.

1.9. Good Repair

1.9.1. Keep the Contents including all electrical gas and other appliances equipment and apparatus in good repair and condition, fair wear and tear excepted.

1.9.2. Take care not to cause an overload of the electrical circuits by the inappropriate use of multi-socket electrical adaptors or extension cables when connecting appliances to the mains electric system.

1.10. Preserve Interior Condition

1.10.1. Keep the Property and the Contents in good order and in a clean condition as at the commencement of the Tenancy, fair wear and tear excepted.

1.10.2. Permit the Landlord to give the Tenant notice in writing of any necessary works of repair, cleaning, restoration, or replacement which is the obligation of the Tenant to be undertaken within a reasonable time agreed between the Tenant and the Landlord.

1.11. Clean Windows

1.11.1. Clean the inside and outside of the easily accessible windows regularly and at the end of the Tenancy.

1.12. Prevent Obstructions

1.12.1. At all times take all reasonable precautions not to cause blockage to the drains and pipes in or about the Property and keep gutters, gullies and downpipes free of debris. In the event that a blockage is caused as a result of misuse or negligence of the Tenant, their family or visitors, the Tenant shall be liable to clear, or arrange the clearance of, the blockage or debris.

1.13. Protect from Freezing

1.13.1. At all times, to ensure that all reasonable precautions are taken to protect the Property against freezing and burst pipes, provided the pipes and other installations are kept adequately insulated by the Landlord. To reimburse the Landlord in respect of any damage caused to the Property as a result of frozen or burst pipes due to the Tenant failing to take reasonable precautions.

1.14. Keep Ventilated

1.14.1. Keep the Property adequately ventilated and make good use of extractor fans (where provided) so as to reduce the occurrence of condensation and wipe away any occurring condensation to prevent any resultant mould and damage to the Property and the Contents. The Tenant agrees not to block vents, extractors, or other mechanisms used for ventilating the Property.

1.15. E-bikes or E-scooters

1.15.1. The Tenant agrees not to store or charge an E-bike or E-scooter or bring any form of modified e-bike or e-scooter into the Property without the Landlord's prior written consent. If in breach of this clause, the Tenant will be liable for or to compensate the Landlord for any damage caused and to restore the interior and/or exterior of the Property to the condition described in the Inventory.

1.16. Fuel Storage

1.16.1. Any coal/logs stored at the Property must be stored in an appropriate and suitable receptacle in such a place as will not cause damage to the Property or the Contents.

1.17. Prevent Infestation

1.17.1. Not keep any refuse or rubbish in the Property and regularly dispose of the same in a suitable receptacle to maintain acceptable levels of hygiene and prevent outbreaks of any infestations such as pests or disease. In the event of an infestation, to clean, arrange, or compensate the Landlord for the cleaning of the Property with de-infestation cleaner to a professional standard at the end of the Tenancy if de-infestation is necessary.

1.18. Maintain Gardens

1.18.1. Keep any gardens and grounds including any pond, terrace or patio included in the Property in a neat, unobstructed and tidy condition and free from litter and weeds. Keep the grass cut and reasonably maintain any lawns, trees and shrubs in a proper manner as seasonally required. Not to cut down or remove any trees, shrubs or plants (other than annual plants) or otherwise alter the existing design content or layout of the said garden or grounds without the prior written consent of the Landlord, which will not be unreasonably withheld.

1.19. Not Alter Property

1.19.1. Not alter or in any way interfere with the construction or arrangement of the Property. Not to carry out any redecoration or make any alteration in or addition to the exterior or interior of the Property without the previous consent in writing of the Landlord, which will not be unreasonably withheld.

1.19.2. The Tenant may, with the Landlord's consent (which will not be unreasonably withheld) make adaptations or improvements to the Property where the Property is occupied (or will be occupied) by a disabled person as their home and those adaptations or improvements are likely to facilitate that disabled persons use or enjoyment of the Property. The Tenant should note that this clause replaces the rights provided by Section 190 of the Equality Act 2010.

1.20. Not Remove Contents

1.20.1. Not remove or allow the removal of the Contents from the Property or store the Contents in any way which may lead to the condition of the Contents to be damaged or deteriorate at a quicker pace than they would if they remained in the places recorded in the Inventory.

1.21. Not Affix Items to Walls

1.21.1. Not to hang pictures other than with a reasonable number of commercially available picture hooks or fastenings without the prior written consent of the Landlord, which will not be unreasonably withheld.

1.22. Not Post Signs

1.22.1. Not to display or allow to be displayed any notice, sign, banner or placard visible from outside the Property without the prior written consent of the Landlord, which will not be unreasonably withheld or delayed. The Landlord reserves the right to withdraw, for reasonable grounds and upon reasonable notice, any consent previously given.

1.23. Not Affix or Erect Aerial or Satellite Dish

1.23.1. Where not already provided or available at the Property, not to affix or erect outside the Property any television or radio aerial or satellite dish or install any cable television or cable telephone without the prior written consent of the Landlord, which will not be unreasonably withheld or delayed but may be subject to conditions. Where granted such consent will be detailed under Special Tenancy Conditions or as an Addendum to this Agreement. The Landlord reserves the right to withdraw, for reasonable grounds and upon reasonable notice, any consent previously given.

1.24. Pets

1.24.1. The Tenant agrees not to keep any animals or birds (whether domestic or otherwise) in the Property without the Landlord's prior written consent which the Tenant may seek in accordance with Section 16A of the Housing Act 1988. Such consent will not be unreasonably withheld or delayed. The Landlord has up to 28 days to respond. If a superior landlord refuses consent then it will be reasonable for the Landlord to refuse consent. Any consent given will be for a specific pet and may include reasonable conditions to prevent nuisance to other parties and ensure the protection of the Property and those additional conditions will form part of the terms of this tenancy agreement.

1.25. Smoking Prohibition

1.25.1. Not to smoke or allow any other person to smoke any cigarettes cigars pipes or other forms of tobacco or other substances, including vapes, within the Property without the prior written consent of the Landlord. Where granted such consent will be detailed under Special Tenancy Conditions or as an Addendum to this Agreement. The Landlord reserves the right to withdraw, for reasonable grounds and upon reasonable notice, any consent previously given. In the event of any breach of this clause then the Tenant shall pay such costs to the Landlord for making good any resultant staining, discolouration, burn marks or odour present at the Property at the end of the Tenancy.

1.26. Changing Locks

1.26.1 Not alter, change or install any locks on any doors or windows in or about the Property or have any additional keys or remote control devices made, except in the case of an Emergency, without the prior written consent of the Landlord, which will not be unreasonably withheld or delayed.

1.26.2. Where consent to change locks is granted, one set of the new keys must immediately be made available to the Landlord and at the end of the Tenancy the Tenant must provide the same number of sets of keys, fobs and other devices for the new locks as were provided by the Landlord at the commencement of the Tenancy.

1.26.3. Where any keys the Tenant is responsible for are either lost or stolen, the Tenant shall be liable for the cost of having the relevant lock/s changed for the Property, one set of the new keys must immediately be made available to the Landlord and at the end of the Tenancy.

1.27. Use of Burglar Alarm (if applicable)

1.27.1. Take every precaution to ensure the correct use of the burglar alarm system to the Property and pay any call out charge or costs for the repair or for re-setting of the system necessary as a result of misuse or negligence by the Tenant, their family or visitors.

1.27.2. Not change any burglar alarm code without the prior written consent of the Landlord, which will not be unreasonably withheld or delayed. Where such consent is granted the Tenant will promptly provide the Landlord with the details of the new code.

1.28. Secure Property

1.28.1. Not leave the Property unattended or unoccupied for any period whatsoever without locking and securing all deadlocks and other locks and bolts fitted to the doors and windows permitting access to the Property and ensuring the burglar alarm (if any) is activated.

1.29. Notify & Action if Unoccupied

1.29.1. Not leave the Property vacant, unattended or unoccupied for a period of more than 21 consecutive days without first giving reasonable notice to the Landlord of the intention to do so.

1.29.2. After leaving the Property unattended for any period of 7 days or more, to flush through the water systems by running all taps and showers for 20 minutes and by flushing all toilets to reduce the risk from exposure to legionella bacteria.

1.30. Landlord's Insurance

1.30.1. Not to do, permit to be done, or fail to do anything that may render void or invalidate any policy of insurance on the Property or the Contents nor anything that may cause an increased premium to be payable, provided that a copy of the relevant sections of the policy has been given to or shown to the Tenant at the start of the Tenancy or within a reasonable time thereafter. To pay the Landlord all reasonable sums paid by the Landlord for any increase in premiums and all reasonable expenses incurred by the Landlord incurred as a result of a failure by the Tenant, their family or visitors to comply with this clause.

1.31. Tenant's Personal Possessions

1.31.1. For the avoidance of doubt, there is no cover provided by any insurance policy maintained by the Landlord for any personal possessions introduced into the Property by the Tenant. The Tenant is strongly advised to insure their own belongings with a reputable insurer.

1.32. Permit Access

1.32.1. Permit the Landlord or anyone with the authority of the Landlord at reasonable hours by no less than 24 hours prior written notice (save in the case of an Emergency) to enter the Property to view the state and condition thereof or to undertake any necessary repairs in compliance with obligations placed on the Landlord by law, or other necessary repairs or redecoration of the Property or require access to effect work to a neighbouring property or boundary divide. Should the Tenant agree that the Landlord, Agent or authorised contractor can have access relating to any of the above mentioned circumstances with the Landlord or anyone with the authority of the Landlord and access is denied/not possible due to the Tenant refusing or restricting access, The Tenant will be responsible for default costs incurred by the Landlord associated with this breach.

1.33. Permit Viewing

1.33.1. Permit the Landlord or anyone with the authority of the Landlord by reasonable prior appointment to show the Property:

- a. To potential tenants or purchasers where either the Landlord or Tenant has given notice to terminate the Tenancy; or
- b. To potential purchasers in the event of the Landlord wishing to sell or otherwise deal with the reversion of the Property with the benefit of the Tenancy at any time during the Tenancy.

1.34. Permit Notices

1.34.1. Permit the Landlord to affix a notice of re-letting or selling on the Property where either party has given notice to terminate the Tenancy or where the Landlord wishes to sell the Property with the benefit of the Tenancy at any time during the Tenancy.

1.35. Take Remedial Action

1.35.1. In an Emergency to take appropriate reasonable remedial action to prevent further damage to the Property and give immediate notice to the Landlord.

1.36. Give Notice of Defects

1.36.1. Notify the Landlord immediately in writing upon becoming aware of:

- a. Any damage, defect or want of repair of any nature affecting the Property or any of the Contents, whether or not caused by any act, default or neglect of the Tenant, or any invitee of the Tenant; or
- b. Any burglary or attempted burglary upon the Property.

1.36.2. And the Tenant shall be liable for all reasonable consequential excess loss and expense arising from any failure to give such notice.

1.37. Forward Correspondence

1.37.1. Pass to the Landlord as soon as is reasonably practicable following receipt, any notice or other communication left on or delivered or posted to the Property that are addressed to the Landlord with the exception of obvious circulars or marketing material.

1.38. Leasehold (Lease) or Freehold Covenants and Restrictions

1.38.1. Where applicable and provided that prior to the signing of this Agreement the Tenant is notified in writing or given a copy of the relevant documents, the Tenant agrees to observe and not breach or contravene any terms in the Lease or any Deed under which the Landlord holds the Property.

1.38.2. The Tenant will comply with all and any new regulations relating to the building which may be introduced from time to time and which are notified to the Tenant in writing and protect the Landlord from loss arising from any claim in respect of any breach or non-observance of the same.

1.39. Deed of Covenant (if applicable)

1.39.1. If requested and at the Landlord's expense the Tenant will enter into a Deed of Covenant or such other Deed as the superior landlords may reasonably require.

1.40. Communal Areas (if applicable)

1.40.1. Not to obstruct any common passageways, hallways and staircases nor keep or store or place any item or package or bicycle or pushchair in any communal area of the Property.

1.40.2. Not to hang or permit to be hung or exposed any clothes or other articles in any communal or shared garden or upon the exterior of the Property except where expressly permitted by the Landlord in writing.

1.41. Not Assign or Sublet

1.41.1. Not to assign this Agreement without the prior written consent of the Landlord. Where the Landlord grants consent this may be subject to reasonable conditions and the Tenant will be liable for the reasonable fees and expenses incurred by the Landlord in granting such consent or arranging such assignment.

1.41.2. Not to mortgage or charge the benefit of this Agreement;

1.41.3. Not to take in or receive paying guests or lodgers without the prior written consent of the Landlord.

1.41.4. Not sub-let, part with or share possession or occupation of the Property or any part of the Property with any person not named as Tenant in this Agreement without the prior written consent of the Landlord. Where granted, the Landlord may impose reasonable conditions of consent and the Tenant will be liable for the reasonable expenses incurred by the Landlord in granting such consent.

1.42. Not Cause Nuisance

1.42.1. Not use the Property or allow others to use the Property in a way which may cause damage or a disturbance, nuisance, annoyance, or inconvenience to neighbouring adjoining or adjacent property or to the owners or occupiers of them.

1.43. Music and Noise

1.43.1. Not play any musical instrument, music player, radio or television or cause or permit any undue loud noise to take place in the Property so as to cause disturbance annoyance or inconvenience to the occupiers or owners of any neighbouring adjoining or adjacent property or so as to be audible outside the Property between the hours of 11.00 pm to 7.30 am.

1.44. Permitted Use

1.44.1. To use the Property for no other purpose than that of a strictly private residence for the occupation of the Tenant and occasional guests only; and

- a. Not carry on at the Property or allow the Property to be used for any profession trade or business including any form of short or holiday letting and not to let rooms or apartments or receive paying guests or lodgers in the Property;
- b. Not hold or allow to be held any large meeting or gathering upon the Property or any sale by auction thereon;
- c. Not use or permit the Property or any part thereof to be used for any illegal or immoral purposes;
- d. Not to register a business or company at the address of the Property.
- e. Not to use the Property in any way that will cause any condition in any licence under Part 2 or Part 3 of the Housing Act 2004 to be breached or to cause the Property to require such a licence if it does not already have one.

1.45. Combustible Matter

1.45.1. Not take into or keep at the Property any combustible, offensive or dangerous fluids, fuels or materials or any gas, paraffin or other liquid fuel unless required for normal household use and fully comply with all fire precautions or fire regulations made by the Landlord or the appropriate Fire Authority.

1.46. Own Gas Appliances

1.46.1. Immediately notify the Landlord if any gas appliance is brought into the Property by the Tenant and ensure that it is properly connected to the appropriate pipework by a suitably qualified Gas Safe registered engineer and is safe to use. The Tenant will immediately stop using and remove any such gas appliance which is unsafe or dangerous to either the occupants or the Property.

1.47. Prohibited Substances

1.47.1. Not to use or consume in or about the Property at any time any of the drugs mentioned in the Misuse of Drugs Act 1971 or any other controlled substances the use of which may hereinafter be prohibited or restricted.

1.48. Vehicles

1.48.1. Not to keep any unlicensed or unroadworthy vehicle, commercial vehicle, boat, caravan, campervan or mobile home at the Property without the prior written consent of the Landlord.

1.49. End of Tenancy

1.49.1. At the expiration or sooner termination of the Tenancy:

- a. Return the Property to the Landlord with full vacant possession, removing all occupiers and other persons;
- b. Clean the Property to the same standard as received on Check In as well as the Contents including the washing or dry cleaning (including ironing and pressing) of all bedding, linen, towels, carpets, curtains, upholstery and soft furnishings and other articles set out in the Inventory or articles substituted for the same which shall be shown by reference to the Inventory to have been soiled during the Tenancy;

- c. Make good and/or pay for the repair of or replacement of any of the Contents that are broken, lost or damaged during the Tenancy, save for fair wear and tear;
- d. Notify all utility and council tax authorities of the date of termination of the Tenancy and pay all outstanding accounts with the service providers up to and including the last day;
- e. Arrange for the return to the hire company prior to the check-out of any hired or rented television or other equipment or appliance which the Tenant has hired or rented for their use at the Property;
- f. Deliver all keys and remote control devices to the Landlord and pay to the Landlord all reasonable costs incurred by the Landlord in replacing the locks or devices where such keys or devices are missing;
- g. Remove all rubbish and personal items from the Property before the end of the Tenancy. The Tenant will be responsible for meeting all reasonable removal costs and/or storage charges for items left in the Property after the end or earlier termination of the Tenancy. The Landlord will remove and store such items for a maximum of fourteen days, and take all reasonable steps to contact the Tenant in this regard and, where possible, will notify the Tenant at the last known address. If the items are not collected within fourteen days the Landlord may dispose of them and the Tenant will be liable for the reasonable costs of disposal, which may be deducted from the Deposit or from any sale proceeds and if there are any costs remaining they will remain the Tenant's liability; and
- h. Provide the Landlord with a forwarding address where the Tenant may be contacted after the Tenant has vacated the Property and permit the Landlord to give the forwarding address to the suppliers of gas, electricity, fuel, water, telephone services, environmental services or other similar services incurred at the Property for which the Tenant is liable and Council Tax authority.

1.50. Breach of Tenancy

1.50.1. The Tenant shall pay the Landlord's reasonable legal costs and expenses (including VAT) incurred by the Landlord in enforcement or remedy of any breach of the Tenant obligations under this Agreement, including any costs in serving notice and proceedings to obtain vacant possession of all or part of the Property, whether or not the same shall result in court proceedings.

1.50.2. The Tenant shall pay the cost of any bank or other reasonable charges incurred by the Landlord if any standing order payment or cheque submitted by the Tenant is withdrawn or dishonoured by the Tenant's bank.

1.50.3 The Landlord will pay the reasonable legal costs and expenses (including VAT) incurred by the Tenant in enforcement or remedy of any breach of the Landlord's obligations under this Agreement.

2. LANDLORD OBLIGATIONS

The Landlord agrees with the Tenant that the Landlord will:

2.1. Deliver Up Property

2.1.1. At the commencement of the Tenancy deliver:

- a. The Property and Contents in a tidy condition and cleaned;
- b. Any working chimney swept and clean; and
- c. All appliances, smoke and carbon monoxide detectors in proper working order.

2.2. Allow Quiet Enjoyment

2.2.1. Permit the Tenant to quietly possess and enjoy the Property during the Tenancy without any unreasonable or unlawful interruption from the Landlord or any person acting on their behalf.

2.3. Pay Outgoings

2.3.1. Pay all taxes, insurance, service charge assessments, impositions and other outgoings in respect of the Property, save for those expressly stated as the Tenant's responsibility in the Utility Table above or elsewhere in this Agreement.

2.4. Maintain Property

2.4.1. Carry out those repairs to the Property the liability for which is imposed upon the Landlord by Section 11 of the Landlord & Tenant Act 1985. This liability obliges the Landlord to repair and keep in good order:

- a. The structure of the Property and exterior (including drains gutters and pipes);
- b. Certain installations for the supply of water, electricity and gas;
- c. Sanitary appliances (including basins, sinks, baths and sanitary conveniences); and
- d. Appliances for space heating and water heating; but not other fixtures, fittings and appliances for making use of the supply of water and electricity.

And further to put and keep the Property in a state fit for human habitation as required by Section 9A of the Landlord & Tenant Act 1985

2.4.2. These obligations arise only after written notice has been given to the Landlord by the Tenant in accordance with the terms of this Agreement;

2.5. Maintain Appliances

2.5.1. Put and keep in repair and proper working order the central heating system, electrical appliances and other equipment provided by the Landlord for the use of the Tenant provided that the Tenant shall be responsible for the cost of such repair or replacement if it is necessary as a result of damage sustained through misuse or negligence by the Tenant or their family, any visitor or guest.

2.6. Burglar Alarm (if applicable)

2.6.1. Maintain in proper working order the burglar alarm system (if any) provided to the Property save that any call out charge or costs for repair necessary as a result of misuse or negligence by the Tenant, their family, any visitor or guest shall be payable by the Tenant.

2.7. Title and Consents

2.7.1. The Landlord confirms that all necessary consents have been obtained to enable the Landlord to enter into this Agreement.

2.8. Safety Regulations

2.8.1. The Landlord warrants that:

- a. Where applicable all upholstered furniture, soft furnishings, beds, bed bases, mattresses (and mattress toppers), pillows, cushions and seat pads supplied to the Property comply with the provisions of The Furniture and Furnishings (Fire) (Safety) Regulations 1988 and The Furniture and Furnishings (Fire) (Safety) (Amendment) Regulations 1993;
- b. All gas appliances, fittings and flues within and provided by the Landlord for the Property comply with the Gas Safety (Installation & Use) Regulations 1998 and will be maintained in a safe condition and that all gas appliances will be checked for safety annually by a person with the appropriate approvals and in accordance with regulation 36 of the Gas Safety (Installation and Use) Regulations 1998. A copy of the Gas Safety Check Record will be provided to the Tenant at the start of the Tenancy and within 28 days of the annual check undertaken during the Tenancy;
- c. The electrical installation has been inspected in accordance with regulation 3 of the Electrical Safety Standards in the Private Rented Sector and Social Rented Sector (England) Regulations 2020 and the required standard will be met as from the date of the Tenant's occupation. The installation will be tested at the intervals specified in any inspection report (and in all cases not less often than every five years) and a copy of the inspection report will be provided to the Tenant; and
- d. All mechanical and electrical equipment in the Property are in good repair and working order.
- e. The Property is compliant with Health and Safety Executive (HSE) Approved Code of Practice (ACOP) L8 'Legionnaires' disease - The control of legionella bacteria in water systems' at the commencement of the Tenancy.

2.9. Smoke Detectors and Carbon Monoxide Detectors

2.9.1. The Property is compliant with The Smoke and Carbon Monoxide Alarm (England) Regulations 2015 at the start of the Tenancy.

3. NOTICES

3.1. Address and Service

3.1.1. The Tenant may give notice in writing to the Landlord to terminate this tenancy. However, it will be the responsibility of the Tenant to show that the notice came to the attention of the Landlord or their agent. If the Tenant gives notice in accordance with clause 3.1.2 below then the notice will be assumed to have come to the attention of the Landlord or their agent in accordance with that clause. The Tenant must give not less than two month's notice of their intention to terminate the Tenancy, such notice must expire at the end of a period of the Tenancy.

3.1.2. If either party send any document in relation to this Agreement to the other, it shall be deemed to have been validly and sufficiently served delivered to the receiving party's address or last known address if it is delivered by hand; sent by first class post or by registered post or recorded delivery to **<address withheld>** or if sent by email; to the email address provided by the Tenant at the start of the Tenancy, and which has been confirmed as being their own: **<email withheld>**, and **<email withheld>**, or by email from the Tenant to the Landlord: **<email withheld>**.

- Where notice is served by first class post, the notice shall be deemed to have been served two working days after the date of posting.
- Where notice is served by hand or email before 16:30 on a working day then the notice will be deemed served that day. If it is served after 16:30 on a working day, or served on a non-working day, then it will be deemed served on the next working day.
- If the email provided above should no longer be appropriate for the service of notices then the other party must be notified of an alternative email address for this purpose.

3.1.3. Any notice or document to be served on the Tenant may be served by the Landlord or by the Landlord's Agent on behalf of the Landlord.

3.1.4. For the purposes of Sections 47 and 48 of the Landlord and Tenant Act 1987 the address of the Landlord is as stated above. Where this address is in England and Wales notices on the Landlord (including notices in proceedings) may be served to this address. Where the Landlord's address is not in England and Wales, the address of the Landlord as detailed in this Agreement under Definitions may be used as an alternative address for the service of notices on the Landlord (including notices in proceedings). If either of these addresses should change during the Tenancy the Tenant will accordingly be notified in writing. The Tenant should note that the address given for the purpose of sections 47 and 48 is not an address for service once the tenancy has ended and the Tenant will need to serve any claims on the Landlord in accordance with the appropriate rules of the Court.

4. MISCELLANEOUS

4.1. Agent of the Tenant

4.1.1. Any payments in respect of or on account of Rent made by or drawn on accounts other than those of the Tenant named in this Agreement will be accepted by the Landlord as payment made by or on behalf of the Tenant only and in no circumstances shall constitute the creation of a new tenancy to any other person.

4.2. Data Protection & Confidentiality

4.2.1. The personal information of both the Landlord and the Tenant will be retained by the Landlord in accordance with the terms of the Landlord's Agent's privacy policy ('the Policy') which both parties will have been served with and which is also available to view on the Landlord's Agent's website.

4.3. Habitation

4.3.1. If the Property or part of the Property is destroyed or made uninhabitable by any insured risk, and provided such damage is not as a result of any action or misuse or negligence of the Tenant, a third party, any family or visitors, whether invited or not.

- The Rent will cease to be payable until such time as the Property is reinstated and rendered habitable;
- The Landlord shall not be responsible for re-housing the Tenant; and
- In the event that the extent of the damage is such that the Property is not made habitable within one month, either party may terminate the Tenancy by giving immediate written notice to the other party.

4.4. Right to Rent

4.4.1. All adults named as the Tenant or who reside at the Property as a Permitted Occupier, whether named in this Agreement or not, must provide a valid passport and visa or work permit to the Landlord prior to taking occupation of the Property either before or during the Tenancy. If any person fails to comply, the Landlord may take any necessary legal action to have the person evicted from the Property.

4.4.2. If any person forming the Tenant or any Permitted Occupier changes or any additional occupant moves into the Property during the Tenancy, the Tenant agrees to ensure that any new or additional persons complies with the legal requirements of the Right to Rent conditions under the Immigration Act 2014 prior to moving into the Property. This will involve meeting the Landlord in person to provide valid documents to be checked and copied.

4.5. Rent Increase

4.5.1. The Landlord may only increase the rent by serving a notice in accordance with Section 13 of the Housing Act 1988 and following the procedure set out in that section.

5. INVENTORY

5.1. Preparation of the Inventory

5.1.1. If the Landlord chooses to obtain an Inventory at the start of the tenancy then the Landlord will be responsible for providing a fully comprehensive Inventory for the Property at the beginning of the Tenancy.

5.2. Attendance

5.2.1. If applicable the Tenant will attend, or appoint a representative to attend the appointment at which time the inspection which informs the Inventory will take place. In the event that the Tenant does not keep a prearranged appointment, the Landlord reserves the right to carry out the Check In without the Tenant in attendance and send a copy to the Tenant once prepared. The Tenant will within seven days of the commencement date of the Tenancy respond with any written amendments or notes.

6. ASSURED PERIODIC TENANCY

This Agreement is intended to create an Assured Periodic Tenancy as defined by the Housing Act 1988 subject to the provisions for the recovery of possession set out in that Act.

6.1. Provision for Re-Entry

6.1.1. If at any time:

- a. The Rent, or any part of it, remains unpaid for 14 days after falling due, whether formally demanded or not;
- b. Any agreement or obligation of the Tenant is not complied with; or
- c. Any of the grounds set out in Schedule 2 of the Housing Act 1988 be made out.

6.1.2. In most cases the Landlord will have to give written notice to the Tenant that the Landlord seeks possession of the Property, using the prescribed form and specifying the grounds for possession being relied on. The notice period will vary depending on the ground or grounds being relied on. In most cases, if the Tenant does not vacate the Property in line with that Notice, the Landlord may only gain possession of the Property by obtaining a court order for possession and executing that order in the proper manner. This clause does not prejudice any other rights that the Landlord may have in respect of the Tenant's obligations under this Agreement.

7. DEALING WITH THE DEPOSIT

7.1. The Landlord's Agent shall lodge the Deposit with the Tenancy Deposit Scheme ('TDS') as soon as reasonably practicable. Any interest earned on the Deposit will be retained by The Dispute Service Limited at the end of the Tenancy and any agreed balance of the Deposit (subject to the clauses below) will be returned to the Tenant.

7.2. After the Tenancy the Landlord's Agent is entitled with the written consent of the Tenant, to deduct from the sum held as the Deposit any monies referred to in this Agreement. If more than one such deduction is to be made by the Landlord, monies will be deducted from the Deposit in the order listed.

7.3. The Landlord's Agent shall notify the Tenant in writing of any deduction to be made under this Agreement. That notice shall specify the amounts to be deducted and the reasons for any deductions to be made. No deduction will be made from the Deposit without the written consent of both parties. In the event there is no agreement between the Landlord and Tenant then either party may refer the matter to the TDS for adjudication. This process is set out in the Prescribed Information.

7.4. At the end of the Tenancy the Landlord's Agent shall return the Deposit (subject to any deductions made under the Agreement) promptly at the end of the Tenancy except in the case of dispute in accordance with the scheme terms. If there is more than one Tenant, the Landlord may return the Deposit to any one Tenant, at their sole discretion, at their last known address. That person forming part of the Tenant will hold the Deposit in trust for all others forming the Tenant.

7.5. If the amount of monies that the Landlord is entitled to deduct from the Deposit under the Agreement exceeds the amount held as the Deposit, the Landlord may require the Tenant to pay that additional sum to the Landlord within 14 days of the Tenant receiving that request in writing.

7.6. The Landlord may deduct monies from the Deposit to compensate the Landlord for losses caused for any or all of the following reasons:

- any damage to the Property and/or the Contents caused by the Tenant or arising from any breach of the terms of this Agreement by the Tenant;
- any damage caused or cleaning required as a result of any pets occupying the Property (whether or not the Landlord consented to its presence as set out in this Agreement);
- any sum repayable by the Landlord to the local authority where housing benefit or Local housing Allowance has been paid direct to the Landlord by the local authority;
- any other breach by the Tenant of the terms of this Agreement;
- any instalment of the Rent which is due but remains unpaid at the end of the Tenancy;

- any unpaid account or charge for water including sewerage and environmental charges, electricity gas or other fuels used by the Tenant in the Property;
- any unpaid council tax;
- any unpaid telephone charges;
- any legal costs or expenses, including costs for advice or notices, caused by any breach of this agreement by the Tenant or any legal action required to obtain vacant possession of the Property.

7.7. The Tenant shall not be entitled to withhold the payment of any instalment of Rent or any other monies payable under this Agreement on the ground that the Landlord's Agent holds the Deposit or any part of it.

7.8. If the Landlord sells or transfers their interest in the Property the Tenant shall consent to the transfer of the Deposit (or the balance of the Deposit) to the purchaser or transferee. The Landlord shall then be released from any further claim or liability in respect of the Deposit or any part of it.

8. SPECIAL TENANCY CONDITIONS

Whilst the previous clauses are 'standard' in nature, the following clauses detail the further terms which have been individually specifically negotiated and agreed between the Landlord and the Tenant. If a clause in this section contradicts a clause in the main body of the Agreement then the clause in this section supersedes it, except if the clause in this section is deemed to be un-enforceable in which case the clause in the main body of the Agreement will remain.

8.1. • Any interest accrued on monies that David Burr hold on your behalf will be retained by ourselves to cover bank and administration charges.

8.2. • Tenant to inform utility companies of tenancy start date and contact details. Please give opening meter readings to ensure an accurate changeover.

8.3. • The property and carpets will be cleaned to a professional standard prior to handover, please ensure the property is cleaned to the same standard at tenancy end.

8.4. • Any day to day pest control not caused by a fault of the property is the tenants responsibility.

8.5. • Chimney is sealed and therefore the fireplace is for decorative purposes only.

9. SIGNATURES

Signed by the Landlord's Agent:

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Signed by the Tenant(s):

Signature of Tenant

.....

Signature of Tenant

.....

Supporting Documents Checklist

I confirm I have received the following documents:

- Tenancy Agreement
- Gas Safety Certificate for: 19 Westgate Street, Long Melford, Sudbury, Suffolk, CO109DS
- Energy Performance Certificate for: 19 Westgate Street, Long Melford, Sudbury, Suffolk, CO109DS
- Electrical Installation Condition Report for: 19 Westgate Street, Long Melford, Sudbury, Suffolk, CO109DS
- TDS Terms & Conditions

These documents are attached to the emails that I have received from David Burr Lettings Partnership in conjunction with this tenancy application.

Signed by the Tenant(s):

Signature of Tenant

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Signature of Tenant

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